

TENTATIVE RULING FOR September 116, 2026

Department S22 – Judge David Driscoll

This court follows California Rules of Court, rule 3.1308(b) for tentative rulings. (See San Bernardino Superior Court Local Emergency Rule 8.) Tentative rulings for each law & motion will be posted on the internet (<https://www.sb-court.org>) by 3:00 p.m. on the court day immediately before the hearing.

You may appear in person at the hearing although remote appearance by CourtCall is preferred during the Pandemic. (See www.sb-court.org/general-information/remote-access).

If you do not have Internet access or if you experience difficulty with the posted tentative ruling, you may obtain the tentative ruling by calling the department (S-22) at (909) 521-3529 or the Administrative Assistant (909) 708-8756, who prepared the ruling.

If you (or both parties) wish to submit on the Tentative, notify the other party and call the department by 4:00 pm the day before and your appearance may be excused unless the Court orders you to appear.

You must appear at the hearing if you are so directed by the court in the tentative ruling. Be prepared to address those issues set forth by the court in its ruling.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

CIVSB2434516

FELIPE ORTIZ, ET AL. v. BLOOMINGTON BP 2, LLC

TENTATIVE RULING

This is a landlord-tenant dispute. On November 15, 2024, Plaintiffs Felipe Ortiz, Blanco Solano; Fatima Paulina Ortiz Solano, a minor, by and through her guardian ad litem, Felipe Ortiz; Jessie Felipe Ortiz Solano, a minor, by and through her guardian ad litem, Felipe Ortiz; Ulises Eduardo Ortiz Solano, a minor, by and through her guardian ad litem, Felipe Ortiz; and Dulce Elisa Ortiz solano, a minor, by and through her guardian ad litem, Felipe Ortiz, filed their initial complaint against Bloomington BP 2, LLC (LLC).

Plaintiffs filed first amended complaint on March 28, 2025. The FAC alleges eight causes of action: (1) violation of Code of Civil Procedure Section 1159; (2) violation of Civil Code Section 789.3; (3) breach of the covenant of quiet enjoyment; (4) negligence; (5) retaliatory eviction; (6) unfair, unlawful, and deceptive business practices; (7) violation of Civil Code Section 1940.2; and (8) intentional infliction of emotional distress. The LLC answered.

Plaintiffs allege that they had rented and resided at 11062 Locust Avenue in Bloomington, California (Property) since January 5, 2014. In December 2023, the LLC acquired the Property. (Compl. ¶¶ 10, 17.) Beginning in January 2024 and until they vacated the Property in June 2024, they were subjected to relentless pressure from the LLC to vacate the Property as part of a real estate development plan. (Compl. ¶¶ 18-35.) This included threats that the Property would have its utilities cut and would be demolished without any prior eviction notice, locking out Plaintiffs from the Property, financial and relocation

incentives, bad faith eviction notice service, demolition to the front gate of the home while the home was occupied with some of the Plaintiffs inside, and the LLC's unlawful detainer action. (Compl. ¶¶ 19-35.)

Now before the Court is Plaintiffs' motion to continue the jury trial set for November 16, 2026 under California Rules of Court 3.1132. LLC opposes. Plaintiffs reply.

California Rules of Court, rule 3.1332(c) states as follows: "Although continuances of trials are disfavored, each request for a continuance must be considered on its own merits. The court may grant a continuance only on an affirmative showing of good cause requiring the continuance. Circumstances that may indicate good cause include:

- (1) The unavailability of an essential lay or expert witness because of death, illness, or other excusable circumstances;
- (2) The unavailability of a party because of death, illness, or other excusable circumstances;
- (3) The unavailability of trial counsel because of death, illness, or other excusable circumstances;
- (4) The substitution of trial counsel, but only where there is an affirmative showing that the substitution is required in the interests of justice;
- (5) The addition of a new party if:
 - (A) The new party has not had a reasonable opportunity to conduct discovery and prepare for trial; or
 - (B) The other parties have not had a reasonable opportunity to conduct discovery and prepare for trial in regard to the new party's involvement in the case;
- (6) A party's excused inability to obtain essential testimony, documents, or other material evidence despite diligent efforts; or
- (7) A significant, unanticipated change in the status of the case as a result of which the case is not ready for trial."

The Court must also consider other factors as well: "In ruling on a motion or application for continuance, the court must consider all the facts and circumstances that are relevant to the determination. These may include:

- (1) The proximity of the trial date;
- (2) Whether there was any previous continuance, extension of time, or delay of trial due to any party;
- (3) The length of the continuance requested;
- (4) The availability of alternative means to address the problem that gave rise to the motion or application for a continuance;
- (5) The prejudice that parties or witnesses will suffer as a result of the continuance;
- (6) If the case is entitled to a preferential trial setting, the reasons for that status and whether the need for a continuance outweighs the need to avoid delay;
- (7) The court's calendar and the impact of granting a continuance on other pending trials;
- (8) Whether trial counsel is engaged in another trial;
- (9) Whether all parties have stipulated to a continuance;

- (10) Whether the interests of justice are best served by a continuance, by the trial of the matter, or by imposing conditions on the continuance; and
- (11) Any other fact or circumstance relevant to the fair determination of the motion or application.”

(Rules of Ct., rule 3.1332(d).)

Analysis

Plaintiffs argue that facts have come to light that caused a significant, unanticipated change in the status of the case, rendering the case not ready for trial. First, the LLC was dissolved on June 4, 2026. (Murphy Decl. ¶ 17; Exh. 4.) As a result, Plaintiffs were unable to take the deposition of the LLC’s PMK given that the LLC’s counsel’s position was that there was no longer anyone authorized to speak on behalf of the LLC. This e-mail exchange occurred on June 22, 2026. (Murphy Decl. ¶ 15; Exh. 3.) Plaintiffs also seek to add Doe defendants.

Second, Plaintiffs argue that because the LLC was organized in Delaware, it was required to, but failed to comply with Delaware’s Limited Liability Company Act requirements.

Third, on July 20, 2026, Plaintiffs discovered that the LLC had transferred the Property in December 2024 through a deed in lieu of foreclosure. This transfer occurred before Plaintiffs received verified responses that failed to disclose this fact. (Murphy Decl. ¶¶ 11, 15; Exhs. 2, 3.)

Plaintiffs argue that good cause exists because the interests of justice will be served, this is Plaintiffs’ first request to continue the trial, and given that the LLC was dissolved, the LLC cannot suffer prejudice.

The LLC opposes, arguing that Plaintiffs do not meet the statutory requirement for a continuance. It asserts that Plaintiffs were aware of Howard and Howard Investment Partners identity and involvement. It also raises affirmative defenses of the statute of limitations and laches as to any new defendants being named.

In reply, Plaintiffs respond that many of the causes of action that they seek to add to their second amended complaint are subject to statute of limitations longer than two years. They also seek to name Howard as a Doe Defendant, alleging him to be an alter ego of the LLC, and possibly other Doe Defendants under the doctrine of Successor Liability. They also argue that any time barred arguments are premature to be considered at this stage.

There is no dispute that the LLC was organized in Delaware and that its certificate of cancellation was filed on June 4, 2026. While California permits a domestic limited liability company the capacity to exist for the purposes of winding up its affairs, including legal matters, the LLC does not present any argument or statutory authority whether Delaware would also do so. Instead, the LLC argues that the LLC has been cancelled and Plaintiffs are free to prove up a default against the defunct LLC.

In *Greb v. Diamond International Corp.* (2013) 56 Cal.4th 243 (Greb), the California Supreme Court concluded that California’s survival statute under Corporations Code Section 2010, does not apply to foreign corporations. (*Id.* at p. 272.) Given that Corporations Code Section 17707.06, which is applicable to domestic limited liability companies, mirrors the statutory provisions in Corporations Code Section 2010, which governs the survival of domestic corporations, the precedent in *Greb* would appear to apply to foreign limited liability companies.

Thus, Delaware’s survival statute, 6 Delaware Code section 18-201, subdivision (b), should control, which states that the separate legal entity of an LLC “shall continue until cancellation of the limited liability company’s certificate of formation.” (Emphasis added.)

If the LLC no longer exists, the LLC’s opposition, the declaration of Timothy Howard, and its evidentiary objections filed in this matter cannot be considered. This matter is reviewed as if it were unopposed.

The LLC’s responses to the special interrogatories are problematic given the deed in lieu of foreclosure. Special interrogatories were propounded on the LLC in November 2025. (Murphy Decl. ¶ 9.) The LLC provided its responses to these special interrogatories on January 12, 2026, verified by Timothy Howard as an “officer” of the LLC. (Murphy Decl. ¶ 10.)

Special Interrogatory No. 3 requested that “[f]or the time period spanning January 1, 2023, and November 18, 2025, identify all PERSONS that have had an ownership interest in the PROPERTY.” The verified response stated, “Starlight Management, 1500 Rosecrans, Manhattan Beach, California; [Defendant] Bloomington BP2.” (Murphy Decl. ¶ 11; Exh. 2.)

Plaintiffs note that the responses make no mention that the Property was transferred. (Murphy Decl. ¶ 12.) However, in the e-mail between the attorneys on July 20, 2026, the LLC’s counsel disclosed that the Property was surrendered in lieu of foreclosure in December 2024. Given that this deed in lieu of foreclosure occurred in December 2024, it should have been disclosed in the LLC’s verified responses.

This presents a significant, unanticipated change as the ownership of the property transferred during the matter and prejudiced Plaintiffs in being able to address their concerns immediately and before the eve of trial. Further, the LLC’s opposition does not directly address this discrepancy. Lastly, given that the LLC is no longer a legal entity, there cannot be prejudice to a non-existent entity.

TENTATIVE RULING

Plaintiffs’ motion to continue the trial is granted. Plaintiffs have demonstrated good cause that a significant, unanticipated change materially impacting the status and prosecution of this case occurred, rendering the matter not ready for a trial.

Evidentiary Objections

In support of their motion, Plaintiffs submit the declaration of their counsel, Ryan D. Murphy. The LLC filed evidentiary objections to Murphy’s declaration because he refers to allegations made in the FAC and whether Plaintiffs previously released any claims against the LLC and the LLC’s manager Timothy Howard. (Murphy Decl. ¶¶ 2,4-7.) As discussed above, the evidentiary objections are not considered as the court is treating the present motion as unopposed. Although not discussed by the parties, *In re Reinz Wisconsin Gasket, LLC*, No. CV 2022-0859-MTZ, 2023 WL 3300042 (Del. Ch. May 8, 2023), cert. denied, (Del. Ch. 2023) (*In re Reinz*), holds that under Delaware law, a dissolved Delaware limited liability company ceases to exist when a certificate of cancellation is filed and there would no longer be any client for counsel to represent. (*Id.* at p. 4.) Once a certificate of cancellation has been filed for a limited liability company in the state of Delaware, it “cannot otherwise make any decisions or take any action [or] retain counsel or speak through counsel unless and until a receiver or other fiduciary is appointed.” (*Id.* at p. 2.) While *In re Reinz* is not binding and under California Rules of Court, rule 8.1115, it may not be cited because it is an unpublished opinion made before the Court of Chancery in the State of Delaware, the LLC does not present any authority as to how it still legally exists before this Court for purposes of opposing Plaintiff’s motion to continue trial.

TENTATIVE RULING FOR September 16, 2026

Department S22 – Judge David Driscoll

This court follows California Rules of Court, rule 3.1308(b) for tentative rulings. (See San Bernardino Superior Court Local Emergency Rule 8.) Tentative rulings for each law & motion will be posted on the internet (<https://www.sb-court.org>) by 3:00 p.m. on the court day immediately before the hearing.

You may appear in person at the hearing although remote appearance by CourtCall is preferred during the Pandemic. (See www.sb-court.org/general-information/remote-access).

If you do not have Internet access or if you experience difficulty with the posted tentative ruling, you may obtain the tentative ruling by calling the department (S-22) at (909) 521-3529 or the Administrative Assistant (909) 708-8756, who prepared the ruling.

If you (or both parties) wish to submit on the Tentative, notify the other party and call the department by 4:00 pm the day before and your appearance may be excused unless the Court orders you to appear.

You must appear at the hearing if you are so directed by the court in the tentative ruling. Be prepared to address those issues set forth by the court in its ruling.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

CIVDS1936791

JOSE MEJIA CASTELLON v. GARY SCOTT ACKERMAN, ET AL

TENTATIVE RULING

This consolidated litigation arises from a vehicle accident. On December 4, 2019, Plaintiff Jose Mejia Castellon filed his Complaint against Defendants Gary Scott Ackerman (Ackerman) and Suzanne Ackerman (Suzanne). The Complaint pleads two causes of action: (1) negligence and (2) motor vehicle. Also on December 4, 2019, Plaintiff Cristian Alfaro filed his Complaint against Ackerman and later dismissed party (Suzanne) [CIVDS1936792]. Alfaro's Complaint pleads two causes of action: (1) motor vehicle and (2) negligence.

On April 6, 2023, Plaintiffs Daniela Fuentes, Stephanie Viera, and Victor Viera (minor through guardian ad litem Angelica Medrano) filed their Complaint against Defendants Ackerman and Thermodyne International, Ltd. [CIVSB2308491]. Their operative First Amended Complaint pleads two causes of action: (1) negligence, and (2) wrongful death. Defendants Ackerman and Thermodyne answered.

These consolidated litigations are predicated upon an accident occurring on December 4, 2017, on State Route 138, near Pine Tree Rd. On that day, Ackerman was driving westbound while intoxicated. He fell asleep, resulting his veering into the dirt shoulder, hitting the paddle marker, turning to the left, entering the opposite lane, and colliding with the vehicle driven by Castellon with passengers Alfaro, and Delmy Mejia Viera (Decedent). Plaintiffs Alfaro, Fuentes, Stephanie, and Victor are the deceased's children.

Plaintiff Alfaro moved to amend his Complaint to add punitive damages allegations against Defendant Ackerman and to add Thermodyne International, Ltd. as the employer of Ackerman, and thereby, liable under a respondeat superior/vicarious liability for his negligent driving. Defendant Thermodyne opposed. Plaintiff Alfaro replied.

On June 2, 2026, the Court granted the request to file an amended complaint to plead punitive damages. After a short continuance, in July 1, 2026, the Court granted Plaintiff Alfaro motion to amended to add Thermodyne. Defendants answered.

Defendant Ackerman moves to strike Plaintiff Alfaro's allegations and prayer for punitive damages. Plaintiff Alfaro opposes. Defendant Ackerman filed a reply.

Code of Civil Procedure section 436, subdivision (a) states that matters that are "irrelevant, false or improper" are subject to a motion to strike. "Irrelevant" means any immaterial allegation in the complaint. Code of Civil Procedure section 431.10, subdivision (b) defines an immaterial allegation as any of the following:

- (1) An allegation that is not essential to the statement of a claim or defense.
- (2) An allegation that is neither pertinent to nor supported by an otherwise sufficient claim or defense.
- (3) A demand for judgment requesting relief not supported by the allegations of the complaint or cross-complaint.

Additionally, all or part of a pleading that is not drawn or filed in conformity with the laws of this state, a court rule, or order of the court may be stricken. (Code Civ. Proc., § 436, subd. (b).)

The grounds to strike shall appear either on the face of the challenged pleading or from matters that are judicially noticed. (Code Civ. Proc., § 437.) Additionally, the court reads the allegations as a whole, with all parts in their context, and assumes their truth. (*Spielholz v. Superior Court* (2001) 86 Cal.App.4th 1366, 1371; *Clauson v. Superior Court* (1989) 67 Cal.App.4th 1253, 1255.)

Analysis:

Defendant Ackerman seeks to strike Plaintiff Alfaro's prayer for punitive and exemplary damages (FAC, p. 8, ¶ 7) as well as paragraphs 12, 15, 25, 35, 43, 45-47 containing allegations for punitive and exemplary damages. Defendant Ackerman argues that the FAC fails to meet the pleading burden for punitive damages.

Plaintiff Alfaro opposes, asserting that Defendant Ackerman does not address paragraphs 14, 41, 42, or 44. Paragraph 42 alleges, as a direct factual allegation, that Defendant Ackerman voluntarily consumed alcoholic beverages and thereafter chose to operate a motor vehicle on a public roadway. Paragraph 14 alleges, again directly and not on information and belief, that hospital toxicology records generated on December 4, 2017, reflect an ethanol level of approximately 0.113 g/dL. Paragraph 44 alleges the criminal prosecution and guilty plea. Paragraph 41 expressly incorporates all of them into the FAC's punitive damages allegations.

Plaintiff Alfaro maintains that under the controlling authority Defendant Ackerman himself relies upon, that combination, voluntary intoxication followed by a knowing decision to drive, is by itself sufficient to support a finding of conscious disregard for the safety of others. (*Taylor v. Superior Court* (1979) 24 Cal.3d 890, 897 (Taylor).) Plaintiff Alfaro argues that even granted in full, the motion would leave the punitive damages claim standing on allegations Defendant Ackerman has never challenged.

Plaintiff Alfaro also argues that the motion overreaches. Alfaro asserts that five of the ten items Defendant Ackerman asks this Court to strike are not punitive damages allegations at all. Plaintiff contends that paragraphs 12, 13, and 15 appear in the FAC's general allegations, which are incorporated into both causes of action. Further paragraph 25 appears inside the first cause of action for motor vehicle negligence, and paragraph 35 appears inside the second cause of action for general negligence. Paragraph 25 alleges careless and inattentive operation, failure to maintain control, failure to keep a proper lookout, and unreasonable speed. Those are negligence allegations, and they stand whether or not any prayer for punitive damages remains in the case.

A party may obtain punitive damages where he/she proves by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice:

- (1) "Malice" means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.
- (2) "Oppression" means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights.
- (3) "Fraud" means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury. (Civ. Code, § 3294, subs. (a) & (c).)

In a motion to strike punitive damage allegations, the "ultimate facts showing entitlement to such relief must be pled by the Plaintiff." (*Clauson, supra*, 67 Cal.App.4th at p. 1255.) Facts of oppression, fraud, or malice must be alleged. (*Grieves v. Superior Court (Fox)* (1984) 157 Cal.App.3d 159, 166.) The necessary facts can be stated as ultimate facts or conclusions of law, as long as they are read in context with the other facts alleged as to the defendant's conduct to "adequately plead the evil motive requisite to recover [] ... punitive damages." (*Monge v. Superior Court (Crown Gibraltar Graphic Center, Inc.)* (1986) 176 Cal.App.3d 503, 510.)

The general rule of thumb is negligence, even if gross or reckless, cannot justify punitive damages. (*Lee v. Bank of America* (1990) 218 Cal.App.3d 914, 920.)

Both parties raise the following four cases that discuss punitive damages in drunk driving accident cases.

In 1979, the California Supreme Court found when the defendant is aware of the probable dangerous consequences of his conduct, and that he willfully and deliberately failed to avoid those consequences then punitive damages are appropriate. (*Taylor, supra*, 24 Cal.3d at pp. 895-896.) In *Taylor*, the defendant was convicted of drunk driving on numerous occasions and had caused an automobile accident while driving under the influence. (*Id.* at p. 893.) The Court stated, "One who willfully consumes alcoholic beverages to the point of intoxication, knowing that he thereafter must operate a motor vehicle, thereby combining sharply impaired physical and mental faculties with a vehicle capable of great force and speed, reasonably may be held to exhibit a conscious disregard of the safety of others." (*Id.* at p. 897.)

In *Peterson v. Superior Court (Thompson)* (1982) 31 Cal.3d 147, 162 (*Peterson*), the

Supreme Court upheld punitive damages in a drunk driving context where the allegations showed, after consuming alcohol, the defendant drove with the plaintiff in the vehicle at speeds exceeding 100 mph and the plaintiff objected to the speed following by the defendant consuming more alcohol at a restaurant and then returning to the car to drive over 75 mph. The *Peterson* Court reiterated the *Taylor* conclusion that punitive may be awarded in a nonintentional tort claim where the conduct involved constitutes conscious

disregard of the rights or safety of others. (*Id.* at p. 158.) The plaintiff must establish the defendant intentionally performed an act knowing or should have known it was highly probable harm would result. (*Id.*)

Next, in *Dawes v. Superior Court (Mardian Jr.)* (1980) 111 Cal.App.3d 82, 85-87, 92 (*Dawes*), the Court of Appeal vacated the trial court's order striking allegations of the complaint that the driver while intoxicated ran a stop sign, zigzagged in and out of traffic, and drove over 65 mph in a 35-mph zone, all with reckless disregard of the probable consequences of said conduct and with reckless disregard of the safety of others. These facts were held sufficient to establish the defendant's conscious disregard for the safety of others and that the probability of injury to others could reasonably be inferred. (*Id.* at p. 90.) However, the *Dawes* Court notes a distinction between reckless driving and ordinary drunk driving, i.e., it does not agree that the risk created generally by one who becomes intoxicated and drives is the same as the risk created by an intoxicated driver's decision to "zigzag in and out of traffic at 65 miles per hour in a crowded beach recreation area at 1:30 in the afternoon on a Sunday in June. The risk of injury to others from ordinary driving while intoxicated is certainly foreseeable, but it is not necessarily probable. The risk of injury to others from Defendant's conduct under the circumstances alleged was probable." (*Id.* at p. 89.)

Lastly, in *Busboom v. Superior Court (Keller)* (1980) 113 Cal.App.3d 550, 555 (*Busboom*), the Court of Appeal upheld the plaintiff seeking punitive damages against a drunk driver defendant where the allegations included the defendant was drunk, driving southbound in the northbound lane of the highway, and aware of the safety hazard he created and probable dangerous consequences of his conduct.

But, since *Taylor, Peterson, Dawes*, and *Busboom*, Civil Code section 3294 has been amended to heighten the standard for punitive damage recovery. In 1987, the Legislature required despicable conduct for malice and oppression and increased the burden of proof to clear and convincing evidence. (*Lackner v. North* (2006) 135 Cal.App.4th 1188, 1211-12.) The Supreme Court states:

[T]he statute's reference to "despicable" conduct seems to represent a new substantive limitation on punitive damages awards. Used in its ordinary sense, the adjective "despicable" is a powerful term that refers to circumstances that are "base," "vile," or "contemptible." As amended to include this word, the statute plainly indicates that absent an intent to injure the plaintiff, "malice" requires more than a "willful and conscious" disregard of the plaintiffs' interests. The additional component of "despicable conduct" must be found. (*College Hospital Inc. v. Superior Court (Crowell)* (1994) 8 Cal.4th 704, 725.)

Punitive damages are imposed "for the sake of example and by way of punishing the defendant" thereby they typically are awarded for intentional torts such as assault and battery, IIED, nuisance, fraud, trespass, and product liability. (*Lackner v. North, supra*, 135 Cal.App.4th at p. 1212.) Nevertheless, punitive damages can be imposed in unintentional tort cases, but in such cases, the courts need to consider various factors in determining if the defendant's conduct is despicable. (*Ibid.*; *CRST, Inc. v. Superior Court (Lenning)* (2017) 11 Cal.App.5th 1255, 1261.)

From the above law, although punitive damages may be sought associated with a vehicle accident arising out of the defendant being drunk, despicable conduct must be pled to support the chance to recover punitive damages in the negligence claim. Here, Plaintiff Alfaro alleges that on December 4, 2017, at approximately 12:30 p.m., he was lawfully riding as a passenger in a motor vehicle traveling on State Route 138 in the County of San Bernardino. (FAC ¶ 9.) Defendant Ackerman, operating another vehicle on the same roadway, negligently and carelessly operated his vehicle so as to cause it to collide with the vehicle in which Plaintiff was riding. (FAC ¶ 10.) Plaintiff Alfaro sustained serious bodily injuries and

emotional distress, and Plaintiff Alfaro's mother, Delmy Mejia Viera, who was also an occupant of the vehicle, sustained fatal injuries. (FAC ¶ 11.)

Here, the above allegations are deficient to support despicable conduct.

TENTATIVE RULING

Defendant Ackerman's motion to strike Plaintiff Alfaro's prayer for punitive and exemplary damages (FAC, p. 8, ¶ 7) as well as paragraphs 43 and 45-47 containing allegations for punitive and exemplary damages is granted with 20 days leave to amend.